

Companies Act 71 of 2008

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Key features

- Profit and non-profit companies; state-owned companies.
- Memorandum of Incorporation (MOI) as the founding document.
- Solvency and liquidity tests for distributions.
- Codified directors' duties (ss 75–77) including fiduciary duties and the duty of care, skill and diligence, with a business judgment safe harbour.
- Business rescue (Chapter 6) as an alternative to liquidation for financially distressed companies.
- Appraisal rights and fundamental transactions (schemes, mergers, disposals).
- Enhanced shareholder protections and social and ethics committee requirements for certain companies.

CIPC

The Companies and Intellectual Property Commission administers incorporation, annual returns and compliance.

NOTE: Educational summary for SA research demo.

— End of curated extract. Verify official text before reliance. —